INDIA NON JUDICIAL
Government of Karnataka
e-Stamp

OBLIGATION BOND

Bond to be executed by the candidate opting Karnataka State Government Hospital for pursuing DNB/Diploma Courses.

KNOW ALL MEN BY THESE PRESENT THAT WE : Dr. _____ S/o, D/o, W/o Sri/Dr. _____ aged _____ years, residing at _____ and having permanent address _____ _____ (hereinafter referred to as "the Obliger") and Sri./Dr._____ S/o, D/o, W/o Sri./Dr._____ residing at _____ (Ist surety) and Sri./Dr._____ S/o, D/o, W/o Sri./Dr._____ residing at _____ (2nd surety)

(hereinafter jointly and severally referred to as "the sureties") do hereby jointly and severely bind ourselves and each of us, in the whole, our respective heirs, executors, and administrators to pay to the Governor of Karnataka (hereinafter referred to as "**The Government**") on demand the sum of **Rs. 20,00,000/- (Rupees Twenty lakh only)** together with interest thereon from the date of demand at Government rates for the time being in force on Government loans. And together with all costs between attorney and client and all charges and expenses that shall or may have been incurred by the Government.

WHEREAS for the better protection of the Government, the obligor has agreed to execute this bond with such condition as here under written.
AND WHEREAS, Sri/Smt/Dr. _____ and Sri/Smt/Dr. _____ sureties have agreed to execute this Bond as on behalf of the above bounden Dr. _____

Whereas the above bounded principal has been selected to Government Hospital with stipend of Rs.56,250 per month for first year, Rs 62,500 per month for second year, 68,750 per month for the final year of the course for _____ Speciality for Primary DNB or Diploma / 62,500 per month for first year, 68,750 per month for the final year of course for_____ Speciality Secondary DNB at _____Hospital, _____ District on condition of his/her executing a bond supported by the sureties in the terms appearing which the stipend holder has agreed to do:-

i. Now the conditions of the above written bond are that in the event of the above bounded principal discontinuing the training course after getting the admission, or participating in a strike or being made to leave the training course on account of indiscipline or misconduct on his/her part or fail to clear theory and practical examination of NBE, New Delhi or failing/refusing to serve the Government for a minimum continuous period of one year after successful completion of DNB/Diploma Course/after qualifying for full registration on completion of the course or for other reasons shall be liable to deposit the entire bond money of Rs. 20,00,000/- (Rupees Twenty lakh only) with the State Government and the Secretary Health to Government of Karnataka through District Surgeon/ Medical Superintendent I/c of _____ Hospital, _____ District, hereinafter referred to as the competent authority) whose decision in this behalf shall be final to enforce the bond.

   Principal and the sureties shall jointly and severely pay to the Government on demand without demur a sum of Rs. 20,00,000/- (Rupees Twenty lakh only) for the purpose of this clause, the expression 'refusal to serve the government' would include the refusal on the part of the Principal to appear before the selection committee of the government, for personal interview etc., if any, to consider his suitability of employment under the government in terms of the bond.

ii. It shall be further condition of the bond that although the Principal have secured employment under the Government through his own efforts or otherwise without the knowledge/notice of the government within the period of one year after qualifying for full registration passing the examination, such appointment shall still be automatically deemed to have been made by the government in terms of this bond.

Notwithstanding that anything that may be contained in the offer of appointment under the government the Principal shall on his appointment be deemed to be in terms of this bond under the government and he would not resign from the service of the government

without the previous sanction in writing of the competent authority, before the completion of the minimum period of service as stipulated under this bond unless he/she is discharged from such service by the government for any reason and no such resignation accepted or purported to have been accepted by any authority shall for the purpose of this bond only, become effective unless the previous permission in writing of the competent authority has been obtained by the Principal.

iii. During the period of training and bond period, the terms and conditions of this bond may be amended by incorporating suitable additional terms by Government of Karnataka depending upon the facts and unforeseen circumstances. In such an event additional bond shall be executed.

1._____ Signatures_____
(Name of Obligor)
Address:

Telephone no:
2._____ Signatures_____
(Name of Ist Surety)
Address:

Telephone no:
3._____ Signatures_____
(Name of 2nd Surety)
Address:

Telephone no:

The decision of the competent authority as to the commission of breach or as such indiscipline, misconduct on the part of the Principal and as to whether the Principal has or has not performed and observed the conditions and obligations under these presents shall be final and binding on the principal and the sureties.

And upon making such payment the above written bond shall be void and of no effect but otherwise it shall be and remain in full force and virtue.

It is further agreed that in the event of the Principal being unsuccessful in any of the qualifying examination conducted in the said institute/college/hospital, the government may at their discretion, with hold the payment of scholarship for the prosecution of further studies and the decision of the competent authority in this behalf shall be final and binding.

It is agreed that the liability of the sureties hereunder shall not be impaired or discharged by reason of time being granted or any forbearance, act or omission of the government (whether with or without the knowledge or consent of the sureties) in respect or in relation to the several obligations and conditions to be performed or discharged by a Principal or by any other matter or thing what so ever, the law relating to sureties shall but for this provision have the effect or releasing the sureties from liability nor shall it be necessary for the government to sue the Principal before suing either of the sureties for amounts due hereunder.

IN WITNESS WHERE OF THE SAID Principal and the sureties have put their respective hands the day and year herein above written and Dr._____ has for and on behalf of the Governor of Karnataka signed these presents on the date appearing his signatures.

1._____ Signatures_____
(Name of Obligor)
Address:

Telephone no:
2._____ Signatures_____
(Name of Ist Surety)
Address:

Telephone no:
3._____ Signatures_____
(Name of 2nd Surety)
Address:

Telephone no:

The stamp duty, if any leviable on this bond shall be borne by the obligor signed and delivered by the above person in the presence of witnesses. In witness where the parties here to have thereunto set their hands on the date hereafter specified respectively in the 2017 year of the Republic of India.

And upon the obligor Dr. _____ and Sri/Smt/ Dr. _____ Surety (1) and Sri/Smt/Dr. _____ Surety (2), the sureties aforesaid making such payment, the above written obligation shall be void and of no effect, otherwise, it shall be and remain in full force and virtue:

Provided always that the liability of the sureties, here under shall not be impaired or discharged by reason of time being granted or by any forbearance, act or omission of the Government or any person, authorized by them (whether with or without the consent or knowledge of the sureties) nor, shall it be necessary for the Government to sue the obligor before suing the sureties _____ and _____ or any of them for the amounts due here under.

The bond shall in all respects be governed by the laws of India for the time being in force and the rights of liabilities here under shall where necessary be accordingly determined by the appropriate courts of India.

The Government of Karnataka have agreed to bear the stamp duty payable this bond.

(Signature of witness 1_____ (Signatures of Obligor)
Address_____
_____
(Signature of witness 2_____
Address_____
_____

at this_____day of_____, 2018.

Signatures and address of witnesses

1)_____

Address _____

_____

2)_____

Address _____

_____

1)_____

Address _____

_____

2)_____

Address_____

_____

Signatures & address of Sureties

1) _____

(Signature Ist surety)

(Name and address of Ist surety)

2) _____

(Signature 2nd surety)

(Name and address of 2nd surety)

Certified that the above named sureties are solvent and acceptable

Attested by

Ist Class Executive Magistrate

Checked and found correct

Dr. _____

District Surgeon/ Medical Superintendent

I/c, _____ Hospital,

_____ District, Karnataka

Verified and may be accepted

Dr. _____**,**

Director, Directorate of Health and Family Welfare Services, Ananda Rao Circle, Bengaluru.

ACCEPTED

_____

Principal Secretary to Government

Department of Health and Family Welfare

for and on behalf of the Governor of Karnataka/ President of India.

Solvency
Affidavit of Ist Surety

I,_____S/O,D/O Sri./Smt/Dr._____ resident of_____ do hereby solemnly affirm and declare as under:

1) That I state on oath that I am a permanent resident of _____

2) That I state on oath that I stand surety for _____ "the obligor" whereas the National Board of Examination New Delhi has selected the obligor for post graduate course in _____for the period from _____ to_____at _____ Hospital, _____District.

3) That I state on oath that I am owner of the property amounting to Rs._____in my possession. The valuation certificate of the property is enclosed (issued by competent authority). The detail of the property is as under:

4) That I state on oath that I have not alienated the said property and I will not sell, pledge, and transfer the said property till the completion of the bonded period.

(Fill up whichever is column is applicable 3 & 4, or 5)

or

5) That I am permanently employed at _____ a state/central government organization situated at _____ as _____(designation) with employee id _____ since _____ and drawing a salary a net salary of Rs _____ per month. The salary certificate issued by competent authority is enclosed.

I, further declare that contents of my above affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therein.

Verified at _____ Deponent

Dated:_____

V E R I F I C A T I O N

I, further declared that contents of my above affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therein.

Verified at _____ Deponent

Dated:_____

(To be attested by Ist Class Executive Magistrate

Solvency
(Affidavit of Second Surety)

I,_____S/O,D/O Sri./Smt/Dr._____ resident of_____ do hereby solemnly affirm and declare as under:

1) That I state on oath that I am a permanent resident of _____

2) That I state on oath that I stand surety for _____ "the obligor" whereas the National Board of Examination New Delhi has selected the obligor for post graduate course in _____for the period from _____ to_____at _____ Hospital, _____District.

3) That I state on oath that I am owner of the property amounting to Rs._____in my possession. The valuation certificate of the property is enclosed (issued by competent authority). The detail of the property is as under:

4) That I state on oath that I have not alienated the said property and I will not sell, pledge, and transfer the said property till the completion of the bonded period.

(Fill up whichever is column is applicable 3 & 4, or 5)

or

5) That I am permanently employed at _____ a state/central government organization situated at _____ as _____(designation) with employee id _____ since _____ and drawing a salary a net salary of Rs _____ per month. The salary certificate issued by competent authority is enclosed.

I, further declare that contents of my above affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therein.

Verified at _____ Deponent
Dated:_____

V E R I F I C A T I O N

I, further declared that contents of my above affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therein.

Verified at _____

Deponent

Dated:_____

(To be attested by Ist Class Executive Magistrate

AFFIDAVIT OF CANDIDATE

I,_____ S/O/D/o of _____ resident of_____ _____do hereby solemnly affirm and declare as under:

1) That I have been provisionally selected for admission to Post-graduation Course in the specialty of **DNB/Diploma in** _____ **Speciality** Quota (as the case may be) for the Session _____ at _____ **Hospital,** _____**District.**

2) That the terms and conditions of admission notice are acceptable.

3) That I have not been debarred for doing any Postgraduate course previously.

4) That I am a citizen of India.

5) That I am domicile of _____State, residing at_____ _____(address).

6) My Aadhar Card No. is _____ .

7) That I have not joined/doing any PG course at any other Medical Institute/College in India/abroad.

8) That I have not left any Postgraduate Course during the last three years.

9) That I will not join any Government/Semi Government/Private Service until I complete the bond period in government hospital after the DNB/Diploma.

10) That I will appear in DNB/Diploma Examination after completing two/three years study period in the same course at the government hospital and shall pass the examination as per NBE, New Delhi.

11) That after getting admission in **DNB/Diploma Course (Course) at** _____**Hospital,** _____ **District**, if discontinue/leave the training course, then I will be bound to deposit the required fee of the entire course.

12) That if I discontinue the training course after getting the admission, or participating in a strike or being made to leave the training course on account of indiscipline or misconduct on my part or fail to clear theory and practical examination of NBE, New Delhi or failing/refusing to serve the Government for a minimum continuous period of **one** year as required to do so by the Government within a period of one year after qualifying for full registration on completion of the course or for other reasons, then I shall be liable to deposit the entire bond money of **Rs. 20,00,000/- (Rupees Twenty lakh only)** with the State Government.

Place: Karnataka

DEPONENT

Dated:_____

I, further declare that contents of my above affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therein.

DEPONENT

(To be attested by Ist Class Executive Magistrate)